

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----
CHANDRA DRAGANOV,

Plaintiff,

- against -

CITY OF NEW YORK, P.O. LUIS ANGELES, P.O.
LUIS ANTONIO and P.O. LUIS A. LINARES,
PERSONS EMPLOYED BY NEW YORK CITY
POLICE DEPARTMENT, and "JOHN DOES 1-2",
PERSONS EMPLOYED BY CITY OF NEW
YORK,Defendants.

X

SUMMONS

Index No.: _____

Date Filed: _____

Plaintiff designates

Bronx County
as the Place of TrialThe Basis of Venue is
CPLR § 504(3)

X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
November 28, 2016


Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Plaintiff
CHANDRA DRAGANOV
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7063-AA

Defendants' Addresses:

CITY OF NEW YORK, Claim No. 2016PI007143, 100 Church Street, New York, NY 10007

LUIS ANGELES, NYPD Police Officer, Shield No. 014803, 42ND Precinct, 830 Washington Ave., Bronx, NY 10451

LUIS ANTONIO, NYPD Police Officer, Shield No. 006722, 42ND Precinct, 830 Washington Ave., Bronx, NY 10451

LUIS A. LINARES, NYPD Police Officer, Shield No. 027482, 42ND Precinct, 830 Washington Ave., Bronx, NY 10451

“JOHN DOES 1-2”, Persons employed by City of New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CHANDRA DRAGANOV,

Plaintiff,

- against -

CITY OF NEW YORK, P.O. LUIS ANGELES, P.O.
LUIS ANTONIO and P.O. LUIS A. LINARES,
PERSONS EMPLOYED BY NEW YORK CITY
POLICE DEPARTMENT, and "JOHN DOES 1-2",
PERSONS EMPLOYED BY CITY OF NEW
YORK,

Defendants.

X

VERIFIED COMPLAINT

Index No.: _____

Date Filed: _____

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CHANDRA DRAGANOV (hereinafter the "Plaintiff"), by her attorneys, ATESHOGLOU & AIELLO, P.C., complaining against Defendants CITY OF NEW YORK, P.O. LUIS ANGELES, P.O. LUIS ANTONIO and P.O. LUIS A. LINARES, PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT, and "JOHN DOES 1-2", PERSONS EMPLOYED BY CITY OF NEW YORK (hereinafter collectively "Defendants") upon information and belief, alleges as follows:

THE PARTIES

1. Plaintiff is a resident of Queens County, City and State of New York.
2. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the "CITY") was and is a municipal corporation incorporated and existing under the laws of the State of New York.
3. At all relevant times, the Bronx County District Attorney's Office (hereinafter the "BRONX DISTRICT ATTORNEY'S OFFICE") was and is an agency of Defendant CITY.
4. At all relevant times, Defendant CITY operated, controlled and managed the BRONX DISTRICT ATTORNEY'S OFFICE.

5. At all relevant times, the Bronx County District Attorney (hereinafter the “District Attorney”) and Assistant District Attorneys of Bronx County (hereinafter the “Assistant District Attorneys” or “Prosecutors”) were officers, agents and / or employees of Defendant CITY.

6. At all relevant times, the District Attorney and Assistant District Attorneys were acting within the scope of their employment as officers, agents and / or employees of the BRONX DISTRICT ATTORNEY’S OFFICE, employed by Defendant CITY.

7. At all relevant times, the District Attorney and Assistant District Attorneys were each individually hired, trained, supervised and retained by Defendant CITY, including its agencies, and all supervisory officers, agents and / or employees of Defendant CITY.

8. At all relevant times, the New York City Police Department (hereinafter the “NYPD”) was and is an agency of Defendant CITY.

9. At all relevant times, Defendant CITY operated, controlled and managed the NYPD.

10. At all relevant times, Defendant P.O. LUIS ANGELES, Shield No. 014803, of the NYPD 42nd Precinct (hereinafter “P.O. ANGELES”) was an officer, agent and / or employee of Defendant CITY.

11. At all relevant times, Defendant P.O. LUIS ANTONIO, Shield No. 006722, of the NYPD 42nd Precinct (hereinafter “P.O. ANTONIO”) was an officer, agent and / or employee of Defendant CITY.

12. At all relevant times, Defendant P.O. LUIS A. LINARES, Shield No. 027482, of the NYPD 42nd Precinct (hereinafter “P.O. LINARES”) was an officer, agent and / or employee of Defendant CITY.

13. At all relevant times, Defendants P.O. ANGELES, P.O. ANTONIO and P.O. LINARES were acting within the scope of their employment as officers, agents and / or employees of the NYPD, employed by Defendant CITY.

14. At all relevant times, Defendants P.O. ANGELES, P.O. ANTONIO and P.O. LINARES were each individually hired, trained, supervised and retained by Defendant CITY, including its agencies, and all supervisory officers, agents and / or employees of Defendant CITY.

15. At all relevant times, the names of Defendants “JOHN DOES 1-2” are fictitious, and are intended to be individuals engaged in law enforcement, who were involved in the unlawful arrest and imprisonment, and wrongful prosecution of Plaintiff, whose names are presently unknown to Plaintiff.

16. At all relevant times, Defendants “JOHN DOES 1-2” were acting within the scope of their employment as officers, agents and / or employees of Defendant CITY.

17. At all relevant times, Defendants “JOHN DOES 1-2” were each individually hired, trained, supervised and retained by Defendant CITY, including its agencies, and all supervisory officers, agents and / or employees of Defendant CITY.

18. At all relevant times, Defendants were involved in violating Plaintiff’s rights, and individuals who acted in concert with them to do so, acted toward Plaintiff under color of the statutes, ordinances, customs, policies, procedures, rules and / or usage of the State and City of New York, and within the scope of their employment.

19. Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and “JOHN DOES 1-2” are sued herein in both their individual and official capacities.

STATEMENT OF FACTS

20. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in her presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest and / or criminal prosecution of Plaintiff, and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits, and therefore the complaint has been prepared without the benefit of discovery.

21. The allegations set forth in paragraphs "1" through "20" inclusive are incorporated herein as if fully set forth.

Timeliness and Notice of Claim

22. Plaintiff filed a Notice of Claim (*see* Exhibit "A" annexed hereto) in accordance with General Municipal Law Sections 50-e and 50-i on or about February 19, 2016. The Notice of Claim set forth the name and address of Plaintiff, her attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

23. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

24. A General Municipal Law Section 50-h hearing was held on or about November 3, 2016.

25. On or about November 30, 2015, the criminal action was terminated in favor of Plaintiff, when all related pending charges were dismissed and sealed.

26. This action is being commenced within one year of the dates on which the claims accrued.

27. Pursuant to CPLR § 215(8)(a), this action has been commenced within one year from the termination of the criminal action against Plaintiff that was commenced with respect to the event or occurrence from which claims herein governed by CPLR § 215(3) arose, including assault and battery, false arrest and imprisonment, and malicious prosecution.

Arrest and Criminal Prosecution

28. On or about May 23, 2015 at or near Fulton Avenue and East 169th Street, in the County of Bronx, City and State of New York at approximately 9:50 a.m., Plaintiff was wrongfully stopped, searched and seized by Defendants. Plaintiff was unlawfully detained and arrested by Defendants, their officers, agents and / or employees, without probable cause or justification (hereinafter the "Arrest").

29. During the course of the Arrest, Plaintiff was wrongly and unreasonably handcuffed by Defendants.

30. Defendants refused to remove or loosen said handcuffs despite Plaintiff's clear communication that she was in extreme physical pain and emotional distress.

31. Due to the wrongful and unreasonable manner in which Defendants handcuffed Plaintiff, she suffered significant, severe, painful and permanent physical and personal injuries.

32. During the course of the Arrest, Defendants transported Plaintiff to Central Booking for arrest processing.

33. Plaintiff was wrongfully charged with Criminal Sale of a Controlled Substance in the Third Degree (NYPL § 220.39[1]), Criminal Possession of a Controlled Substance in the Third Degree (NYPL § 220.16[1]), and Criminal Possession of a Controlled Substance in the Seventh Degree (NYPL § 220.03).

34. Defendants wrongfully commenced and continued a prosecution against Plaintiff for the aforesaid charges without probable cause or legal justification under Docket No. 2015BX024274.

35. Said prosecution was instituted and continued by Defendants with malice, bad faith and deliberate indifference to Plaintiff's rights.

36. Defendants falsified and / or manufactured evidence throughout the course of the investigation and prosecution.

37. Defendants' acts and / or omissions caused Plaintiff to be incarcerated for a period in excess of forty-eight (48) hours, and to make numerous appearances in court to defend herself against the aforesaid wrongful charges.

38. As a direct result of Defendants' acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

CAUSES OF ACTION

AS AND FOR A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS FOR FALSE ARREST AND IMPRISONMENT

39. The allegations set forth in paragraphs "1" through "38" inclusive are incorporated herein as if fully set forth.

40. Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and “JOHN DOES 1-2” intended to cause the wrongful and unlawful arrest and detention of Plaintiff, and wrongfully and unlawfully imprisoned Plaintiff.

41. Defendants intended to restrain or to cause Plaintiff to be restrained and to be deprived of her liberty, and caused her to be taken into police custody, and charged with crimes she did not commit.

42. Defendants knew, or should have known, that the conduct engaged in would result in the wrongful and unlawful arrest and imprisonment of Plaintiff.

43. Plaintiff was aware of the confinement by Defendants and did not consent to said confinement.

44. The aforementioned confinement of Plaintiff by Defendants was not privileged in any way and was without legal justification.

45. Plaintiff was thereafter caused to be incarcerated in excess of forty-eight (48) hours.

46. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

47. As a direct result of Defendants’ acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

48. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
MALICIOUS PROSECUTION**

49. The allegations set forth in paragraphs “1” through “48” inclusive are incorporated herein as if fully set forth.

50. Defendants caused the criminal prosecution to be initiated and continued against Plaintiff despite having knowledge that Plaintiff had not committed the crimes she was charged with.

51. Defendants unreasonably instituted and continued said prosecution without probable cause, without any reasonable basis to believe that Plaintiff had committed any crime, and with malice, bad faith and deliberate indifference to Plaintiff’s rights.

52. Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and “JOHN DOES 1-2”, acting in concert and within the scope of their employment and authority, engaged in a deliberate and unjustified course of action to prosecute Plaintiff, and to attempt to secure a conviction based upon falsified and / or fabricated evidence during the investigation of the case, and the withholding of evidence favorable to the defense, for crimes that Plaintiff did not commit, without probable cause, without any reasonably reliable information that Plaintiff had committed any illegal act, where any reasonable investigation of the relevant facts and circumstances would have revealed that Plaintiff had not committed any illegal act, and that any allegations indicating

that Plaintiff had committed any crimes were false and baseless, and that there was no legal justification for the prosecution of Plaintiff.

53. Said prosecution was terminated in favor of Plaintiff, on or about November 30, 2015, when all related pending charges were dismissed and sealed.

54. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

55. As a direct result of Defendants' acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

56. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
ABUSE OF PROCESS**

57. The allegations set forth in paragraphs "1" through "56" inclusive are incorporated herein as if fully set forth.

58. Defendants, acting in concert and within the scope of their employment and authority, employed regularly issued process against Plaintiff compelling the performance or forbearance of prescribed acts, with the purpose of activating the process with intent to harm

Plaintiff without economic or social excuse or justification, to obtain a collateral advantage or corresponding detriment to Plaintiff which was outside the legitimate purpose of the process. Defendants' collateral objectives included the concealment of Defendants' own criminal acts in knowingly causing the wrongful stop, search and seizure, arrest and imprisonment, and criminal prosecution of Plaintiff, without legal basis, justification or probable cause.

59. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

60. As a direct result of Defendants' acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

61. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
ASSAULT AND BATTERY**

62. The allegations set forth in paragraphs "1" through "61" inclusive are incorporated herein as if fully set forth.

63. Defendants, acting within the scope of their employment and authority, intended to make or intended to threaten to make offensive bodily contact with Plaintiff.

64. Defendants knew, or should have known, that the offensive bodily contact or threat of offensive bodily contact would constitute an assault of Plaintiff (hereinafter the "Assault").

65. Defendants knew, or should have known, that the offensive bodily contact would constitute a battery of Plaintiff (hereinafter the "Battery").

66. Plaintiff was aware of the offensive bodily contact and Plaintiff did not consent or acquiesce to it.

67. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

68. As a direct and proximate cause of the aforesaid Assault and Battery, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

69. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

70. The allegations set forth in paragraphs "1" through "69" inclusive are incorporated herein as if fully set forth.

71. Defendants, acting in concert and within the scope of their employment and authority, engaged in conduct that was extreme, outrageous, shocking, and offensive and which

exceeded all standards of reasonable behavior, and was intended, and reasonably expected to cause severe emotional distress to Plaintiff, and did in fact cause Plaintiff severe emotional distress.

72. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

73. As a direct result of Defendants' acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

74. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

75. The allegations set forth in paragraphs "1" through "74" inclusive are incorporated herein as if fully set forth.

76. Defendants, acting in concert and within the scope of their employment and authority, engaged in conduct that was extreme, outrageous, shocking, and offensive and which exceeded all standards of reasonable behavior, carelessly, recklessly, negligently, and with

disregard for the mental health, and the psychological and emotional well-being of Plaintiff, which did in fact cause Plaintiff severe emotional distress.

77. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

78. As a direct result of Defendants' acts and / or omissions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

79. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST DEFENDANT CITY OF NEW YORK FOR
NEGLIGENT HIRING, SUPERVISION, RETENTION AND TRAINING**

80. The allegations set forth in paragraphs "1" through "79" inclusive are incorporated herein as if fully set forth.

81. Defendant CITY failed to exercise reasonable care in screening and hiring Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and "JOHN DOES 1-2"; therefore, breaching their duty to Plaintiff as well as to the public to exercise reasonable care in the hiring of employees.

82. Defendant CITY failed to exercise reasonable care to properly train, educate, inform, supervise, promote, discipline and retain its employees generally, and Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and “JOHN DOES 1-2” specifically, as well as any and all other officers, agents and / or employees of Defendant CITY that were involved in the false arrest and imprisonment and / or prosecution of Plaintiff.

83. Defendant CITY knew or should have known of the propensity of Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and “JOHN DOES 1-2” to commit injurious acts.

84. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

85. As a direct result of Defendants’ acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

86. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
NEGLIGENCE / GROSS NEGLIGENCE**

87. The allegations set forth in paragraphs “1” through “86” inclusive are incorporated herein as if fully set forth.

88. Defendants’ actions in causing the aforesaid false arrest and imprisonment, prosecution, excessive force, and / or negligent infliction of emotional distress of and upon Plaintiff were in breach of the duty of due care owed to Plaintiff. Defendants acted recklessly and negligently and in gross disregard for the procedures and safeguards, which are the standard for the lawful seizure and imprisonment of a citizen, in detaining Plaintiff and prosecuting Plaintiff in the absence of probable cause. Defendants further breached their duty of care to investigate before affecting the seizure of a citizen, and in their initiation and continuation of the prosecution of Plaintiff.

89. Defendant CITY is responsible and liable for damages sustained by Plaintiff as a result of the aforesaid acts of its officers, agents or employees under the doctrine of *respondeat superior*.

90. As a direct result of Defendants’ acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

91. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A NINTH CAUSE OF ACTION
AGAINST DEFENDANT CITY OF NEW YORK FOR
VIOLATION OF 42 U.S.C. § 1983 AND
THE U.S. CONSTITUTION
MUNICIPAL LIABILITY “MONELL” CLAIM**

92. The allegations set forth in paragraphs “1” through “91” inclusive are incorporated herein as if fully set forth.

93. Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and “JOHN DOES 1-2”, individually and collectively, within the scope of their employment and authority and under color of state law, engaged in conduct which constituted customs, policies, procedures, rules and / or usage of the NYPD and / or the BRONX DISTRICT ATTORNEY’S OFFICE and which were in violation of the rights of Plaintiff as secured by 42 U.S.C. § 1983, and the United States Constitution.

94. The aforesaid customs, policies, procedures, rules and / or usage of the NYPD and / or the BRONX DISTRICT ATTORNEY’S OFFICE included but were not limited to, the false arrest and imprisonment and / or prosecution of Plaintiff without legal justification or probable cause, use of excessive force, infliction of emotional distress, abuse of process and authority, and failure to intervene when other officers, agents and / or employees violated Plaintiff’s well-established statutory and constitutional rights.

95. Because the Bronx District Attorney is the policymaker for Defendant CITY with respect to the administration of that Office, and the District Attorney’s unlawful policies and practices in tolerating such misconduct were a substantial cause of the unlawful arrest, imprisonment and malicious prosecution of Plaintiff, Defendant CITY is liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658 (1978), and 42 U.S.C. § 1983.

96. The aforesaid conduct was consistent with the institutionalized practices of the NYPD and the BRONX DISTRICT ATTORNEY'S OFFICE which were known and previously sanctioned by Defendant CITY.

97. Despite knowledge of the institutionalized practices of the NYPD and the BRONX DISTRICT ATTORNEY'S OFFICE, Defendant CITY took no effective actions to end or prevent such practices.

98. Defendant CITY had prior notice of the injurious actions and practices of Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and "JOHN DOES 1-2" but took no effective actions to end or prevent the aforesaid Defendants from committing such actions or practices.

99. Defendant CITY had prior notice that Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and "JOHN DOES 1-2" had inadequate training regarding the applicable provisions of the Penal Law of the State of New York, other applicable laws, and federal and state statutory and constitutional protections, but took no effective actions to ensure that the aforesaid Defendants were provided with adequate or appropriate training.

100. Defendant CITY authorized, tolerated and ratified the misconduct of its officers, agents and employees generally, and of Defendants P.O. ANGELES, P.O. ANTONIO, P.O. LINARES and "JOHN DOES 1-2" specifically, by failing to: discipline officers, agents and employees; take adequate precautions in screening, hiring, training, educating, informing, supervising, promoting, and retaining officers, agents and employees; failing to turn over evidence of unlawful and criminal acts of prosecutors; and failing to establish and maintain a meaningful system for responding to complaints of investigative and prosecutorial misconduct, all of which constituted deliberate indifference by Defendant CITY to Plaintiff's statutory and

constitutional rights, including well-established rights secured by 42 U.S.C. § 1983, and the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

101. As a direct result of Defendants' acts and / or omissions, Plaintiff was caused to suffer damages including significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day.

102. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A TENTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
VIOLATION OF 42 U.S.C. § 1983, THE U.S. CONSTITUTION,
AND THE NEW YORK STATE CONSTITUTION**

103. The allegations set forth in paragraphs "1" through "102" inclusive are incorporated herein as if fully set forth.

104. It was Defendants' governmental policy, practice and / or procedure regarding the the false arrest and imprisonment and / or prosecution of Plaintiff without legal justification or probable cause, use of excessive force, infliction of emotional distress, abuse of process and authority, and failure to intervene when other officers, agents and / or employees violated Plaintiff's well-established statutory and constitutional rights which contributed to and caused harm to Plaintiff to occur, including the violation of Plaintiff's statutory and constitutional rights, secured by 42 U.S.C. § 1983, and the United States Constitution under the First, Fourth, Fifth and Fourteenth Amendments.

105. There have been patterns and series of incidents of unconstitutional conduct by Defendants which have caused false arrest and imprisonment, malicious prosecution, use of excessive force, infliction of emotional distress, abuse of process and authority, and failure to intervene in similar instances as herein.

106. As a direct result of the acts, omissions, and policies of Defendants in failing to adequately screen, hire, train, educate, inform, supervise, promote, discipline and retain officers, agents and employees, Defendants acted with deliberate indifference to Plaintiff's statutory and constitutional rights, including well-established rights secured by 42 U.S.C. § 1983, and the United States Constitution under the First, Fourth, Fifth and Fourteenth Amendments.

107. Acting individually and collectively on behalf of the District Attorney, Defendants withheld favorable, material evidence from Plaintiff and her attorney, presented false and misleading testimony and arguments against Plaintiff, failed to correct such testimony and arguments, and acted to conceal the aforementioned wrongdoing from Plaintiff and her attorney.

108. As a direct result of the aforesaid acts, omissions, and policies of Defendants, under color of State Law, Plaintiff was deprived of her rights, privileges, and immunities secured by 42 U.S.C. § 1983, and the United States Constitution.

109. Defendants subjected Plaintiff to such deprivations, either in a malicious and / or reckless disregard of Plaintiff's rights, or with deliberate indifference to her rights secured by 42 U.S.C. § 1983, and the United States Constitution under the First, Fourth, Fifth and Fourteenth Amendments.

110. As a direct result of the aforesaid acts, omissions, and policies of Defendants, Plaintiff was deprived of her rights, privileges, and immunities secured by the New York State Constitution under Article 1, Sections 6, 8 and 12.

111. As a direct result of the aforesaid acts, omissions, and policies of Defendants, Plaintiff was deprived of her rights, privileges, and immunities secured by New York Common Law to be free from assault and battery, false arrest and imprisonment, malicious prosecution, abuse of process, intentional infliction of emotional distress, negligent infliction of emotional distress, negligence, and other harm.

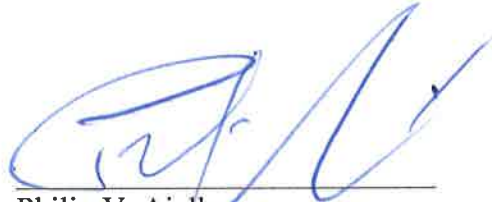
112. As a direct and proximate cause of Defendants' violations of Plaintiff's rights secured by 42 U.S.C. § 1983, the United States Constitution, the New York State Constitution, and New York Common Law, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, mental and physical anguish, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts, and in an amount to be determined at a trial of this action, including attorney's fees under 42 U.S.C. § 1988.

113. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, P.O. LUIS ANGELES, P.O. LUIS ANTONIO and P.O. LUIS A. LINARES, PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT, and "JOHN DOES 1-2", PERSONS EMPLOYED BY CITY OF NEW YORK individually and collectively, on all causes

of action, in an amount which exceeds the jurisdictional limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
November 28, 2016



Philip V. Aiello
ATESHOGLIOU & AIELLO, P.C.
Attorneys for Plaintiff
CHANDRA DRAGANOV
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7063-AA

VERIFICATION

STATE OF NEW YORK)

S.S.:

COUNTY OF NEW YORK)

Chandra Draganov, being duly sworn deposes and says that deponent is the plaintiff in the within action; that deponent has read the foregoing Complaint and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.

Chandra Draganov
Chandra Draganov

Sworn to me before this
28th day of November, 2016


Notary Public

PHILIP AIELLO
Notary Public, State of New York
No. 02A15076944
Qualified in New York County
Commission Expires April 28, 2019